

25SMCV04666 25SMCV04666

County: los-angeles

Division: Civil Law and Motion

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This is a motion to compel a second day of deposition brought by the defense. Plaintiff is suing defendant for wrongful conduct she alleges took place at the workplace and for retaliation. The defendants are plaintiff's employer and the person who allegedly sexually harassed her. Apparently, each defendant is taking a separate deposition of the plaintiff. Plaintiff had a full day of deposition by her employer, but it did not finish. Her employer wants to take a second day, but plaintiff contends that she ought to be done with that deposition. She notes that she gave a full day of testimony and was willing to go longer into the evening but does not want to return. She also notes that much of defendant's questioning was on irrelevant topics. Defendant states that it has more ground to cover and wants more time.

The court has read much of the transcript. While much of it was pertinent, there were many passages that do not appear to have anything to do with anything, such as plaintiff's tattoos, honeymoon, exercise routines, and other similarly seemingly irrelevant topics. That said, the court will inquire as to how many hours of actual testimony plaintiff gave (that is, excluding breaks). The court's sense is that it is not necessarily beyond the pale to allow for some additional testimony—especially if less than the regular statutory time has been used. (The court is aware that the statutory presumptive time is not applicable to employment cases like this, but it is nonetheless a useful data point, especially where it appears that time was wasted.) It could be that a couple of extra hours would not be improper.

But the court will also inquire as to when Mosshart plans to take plaintiff's deposition. It could be that it makes sense to let that one go first and then see if there truly is anything left, or to take this at the start of that deposition on the same day if it is very limited as to time.

The bottom line is that it is likely that some additional time will be given. But it is also likely that there won't be much of it and that it will be given in such a way as to minimize the inconvenience to plaintiff.